

STATE OF NEW YORK

9403--A

Cal. No. 706

IN SENATE

March 10, 2026

Introduced by Sen. BAILEY -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the insurance law, in relation to digital advertisements of insurance agents and brokers

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subsection (b) of section 2122 of the insurance law is
2 amended to read as follows:

3 (b) (1) Every agent of any insurer and every insurance broker shall,
4 in all advertisements, public announcements, signs, pamphlets, circulars
5 and cards, which refer to an insurer, set forth therein the name in full
6 of the insurer referred to and the name of the city, town or village in
7 which it has its principal office in the United States.

8 (2) This subsection shall not apply to digital advertisements. For
9 the purposes of this section, "digital advertisement" means any communi-
10 cation delivered by electronic means, including but not limited to
11 website, text, email or chat room, that is intended to be used for
12 the purposes of marketing, solicitation, or dissemination of informa-
13 tion related, directly or indirectly, to goods or services provided by
14 the digital advertiser or a third party.

15 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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